

‘ Powers, Authorities, Clauses, Rules, Directions, Payments, and Provisions, by such Acts respectively made and enacted: And whereas by one other Act, made in the seventh Year of the Reign of his present Majesty (intituled, *An Act to explain, amend, and reduce into one Act of Parliament the general Laws now in being for regulating the Turnpike Roads of this Kingdom, and for other Purposes therein mentioned*), the said Act of the twenty-eighth Year of his late Majesty, except so much thereof as continue the Acts then made for repairing and amending Turnpike Roads, subject to the Tolls and Duties by such Acts respectively granted, was repealed: And whereas by one other Act, made in the thirteenth Year of the Reign of his present Majesty (intituled, *An Act to explain, amend, and reduce into one Act of Parliament the general Laws now in being for regulating the Turnpike Roads in that Part of Great Britain called England; and for other Purposes*), the said Act of the Seventh Year of his present Majesty, except so much thereof as repealed the several Acts therein mentioned, was also repealed: And whereas Doubts have arisen, whether the said last-mentioned Act, made in the thirteenth Year of his present Majesty, by repealing the said Act of the seventh Year of his present Majesty, in the Manner aforesaid, hath not virtually repealed that Part of the Act of the twenty-eighth Year of his late Majesty, which continued the said Turnpike Acts for five Years; in order therefore to obviate all such Doubts, and to enforce the said Provision for continuing the said Turnpike Acts, as contained in the said Act of the twenty-eighth Year of his late Majesty's Reign; be it enacted by the King's most Excellent Majesty, by and with the Advice and Consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the Authority of the same, That the Provision made by the said Act of the twenty-eighth Year of the Reign of his late Majesty, for continuing the several Acts, made for repairing and amending Turnpike Roads for five Years, shall be and continue in full Force, and be as effectual, to all Intents and Purposes, as the same could, might, or ought to have been, if the said Acts of the seventh and thirteenth Years of his present Majesty's Reign, or either of them, had not been made; any Thing in those Acts, or in either of them, contained to the contrary notwithstanding.

Provisions of Act 23 Geo. 2. for repairing Turnpike Roads for five Years, continued.

II. And be it further enacted, That all and every Person and Persons, who hath or have received, or shall hereafter receive, any Tolls, or other Duties, at any Turnpike or Toll-gate; or who hath acted, or shall hereafter act, in any other respect under the Authority of, and in Execution of any of the Powers of any Act or Acts of Parliament so continued, or intended to be continued, by the said recited Act of the Twenty-eighth Year of his late Majesty, shall be, and is and are hereby indemnified for what he, she, or they have so received or done, or for what he or they shall receive, or do by virtue thereof.

Persons who have or shall receive Tolls at any Turnpike by the aforesaid Act indemnified, &c.

C A P. XXXVII.

An Act for allowing further Time for Inrolment of Deeds and Wills made by Papists, and for Relief of Protestant Purchasers. *Further Time given till January 1, 1775.*

C A P. XXXVIII.

An Act for paving, repairing, cleansing, and lighting, the Streets and Lanes in the City of *Hereford*, and Suburbs thereof, and removing Nuisances and Annoyances therein, and for creating a Fund towards the Expences thereof, by inclosing divers waste Grounds within the Liberties of the said City, and for the better Application of Charity-money for setting the poor People of the said City to Work, and to enable Bodies Corporate to alienate their Houses and Lands within the said City.

C A P. XXXIX.

An Act for the impartial Administration of Justice in the Cases of Persons questioned for any Acts done by them in the Execution of the Law, or for the Suppression of Riots and Tumults, in the Province of the *Massachusetts Bay*, in *New England*.

‘ **W**HEREAS in his Majesty's Province of *Massachusetts Bay*, in *New England*, an Attempt hath lately been made to throw off the Authority of the Parliament of *Great Britain* over the said Province, and an actual and avowed Resistance, by open Force, to the Execution of certain Acts of Parliament, hath been suffered to take place, uncontroled and unpunished, in Defiance of his Majesty's Authority, and to the utter Subversion of all lawful Government: And whereas, in the present disordered State of the said Province, it is of the utmost Importance to the general Welfare thereof, and to the Re-establishment of lawful Authority throughout the same, that neither the Magistrates acting in Support of the Laws, nor any of his Majesty's Subjects aiding and assisting them therein, or in the Suppression of Riots and Tumults, raised in Opposition to the Execution of the Laws and Statutes of this Realm, should be discouraged from the proper Discharge of their Duty, by an Apprehension, that in case of their being questioned for any Acts done therein, they may be liable to be brought to Trial for the same before Persons who do not acknowledge the Validity of the Laws, in the Execution whereof, or the Authority of the Magistrate in the Support of whom, such Acts had been done: In order therefore to remove every such Discouragement from the Minds of his Majesty's Subjects, and to induce them, upon all proper Occasions, to exert themselves in Support of the publick Peace of the Province, and of the Authority of the King and Parliament of *Great Britain* over the same; be it enacted by the King's most Excellent Majesty, by and with the Advice and Consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the Authority of the same, That if any Inquisition or Indictment shall be found, or if any Appeal shall be sued or preferred against any Person, for Murder, or other capital Offence, in the Province of the *Massachusetts Bay*,

Preamble.

How Indictments against Magistrates, and

others, for capital Offences, in the Execution of their Duty, may be tried.

Bay, and it shall appear, by Information given upon Oath to the Governor, or, in his Absence, to the Lieutenant-governor of the said Province, that the Fact was committed by the Person against whom such Inquisition or Indictment shall be found, or against whom such Appeal shall be sued or preferred, as aforesaid, either in the Execution of his Duty as a Magistrate, for the Suppression of Riots, or in the Support of the Laws of Revenue, or in acting in his Duty as an Officer of Revenue, or in acting under the Direction and Order of any Magistrate, for the Suppression of Riots, or for the carrying into Effect the Laws of Revenue, or in aiding and assisting in any of the Cases aforesaid; and if it shall also appear, to the Satisfaction of the said Governor, or Lieutenant-governor respectively, that an indifferent Trial cannot be had within the said Province, in that Case it shall and may be lawful for the Governor, or Lieutenant-governor, to direct, with the Advice and Consent of the Council, that the Inquisition, Indictment, or Appeal, shall be tried in some other of his Majesty's Colonies, or in *Great Britain*; and for that Purpose, to order the Person against whom such Inquisition or Indictment shall be found, or against whom such Appeal shall be sued or preferred, as aforesaid, to be sent, under sufficient Custody, to the Place appointed for his Trial, or to admit such Person to Bail, taking a Recognizance (which the said Governor, or, in his Absence, the Lieutenant-governor, is hereby authorised to take), from such Person, with sufficient Sureties, to be approved of by the said Governor, or, in his Absence, the Lieutenant-governor, in such Sums of Money, as the said Governor, or, in his Absence, the Lieutenant-governor, shall deem reasonable, for the personal Appearance of such Person, if the Trial shall be appointed to be had in any other Colony, before the Governor, or Lieutenant-governor, or Commander in Chief of such Colony; and if the Trial shall be appointed to be had in *Great Britain*, then before his Majesty's Court of *King's Bench*, at a Time to be mentioned in such Recognizances; and the Governor, or Lieutenant-governor, or Commander in Chief of the Colony where such Trial shall be appointed to be had, or Court of *King's Bench*, where the Trial is appointed to be had in *Great Britain*, upon the Appearance of such Person, according to such Recognizance, or in Custody, shall either commit such Person, or admit him to Bail, until such Trial; and which the said Governor, or Lieutenant-governor, or Commander in Chief, and Court of *King's Bench*, are hereby authorised and empowered to do.

Governor to bind in Recognizances to his Majesty all Witnesses the Prosecutor shall desire to attend the Trial, &c. And shall appoint a reasonable Sum for the Expenses of every Witness, which the Collectors of the Customs are to pay. Witnesses to be free from all Arrests during their Journey to any Colony, &c. Persons brought before Justices, &c. accused of any capital Crime in the Execution of their Duty, to be admitted to Bail.

II. And, to prevent a Failure of Justice, from the Want of Evidence on the Trial of any such Inquisition, Indictment, or Appeal, be it further enacted, That the Governor, or, in his Absence, the Lieutenant-governor, shall, and he is hereby authorised and required, to bind in Recognizances to his Majesty all such Witnesses as the Prosecutor or Person against whom such Inquisition or Indictment shall be found, or Appeal sued or preferred, shall desire to attend the Trial of the said Inquisition, Indictment, or Appeal, for their personal Appearance, at the Time and Place of such Trial, to give Evidence: And the said Governor, or, in his Absence, the Lieutenant-governor, shall thereupon appoint a reasonable Sum to be allowed for the Expenses of every such Witness, and shall thereupon give to each Witness a Certificate, in Writing, under his Hand and Seal, that such Witness has entered into a Recognizance to give Evidence, and specifying the Sum allowed for his Expenses; and the Collector and Collectors of the Customs, or one of them, within the said Province, upon the Delivery of such Certificate, are and is hereby authorised and required, forthwith to pay to such Witness the Sum specified therein for his Expenses.

III. And be it further enacted by the Authority aforesaid, That all Prosecutors and Witnesses, who shall be under Recognizances to appear in any of his Majesty's Colonies in *America*, or in *Great Britain*, in pursuance of this Act, shall be free from all Arrests and Restraints, in any Action or Suit to be commenced against them during their going to such Colony, or coming to *Great Britain*, and their necessary Stay and Abiding there, on occasion of such Prosecution, and returning again to the said Province of the *Massachusetts Bay*.

IV. And be it further enacted by the Authority aforesaid, That all and every his Majesty's Justices of the Peace, and other Justices and Coroners, before whom any Person shall be brought, charged with Murther, or other capital Crime, where it shall appear by Proof, on Oath, to such Justices or Coroners, that the Fact was committed by such Person, either in the Execution of his Duty as a Magistrate, for the Suppression of Riots, or in the Support of the Laws of Revenue, or in acting in his Duty as an Officer of Revenue, or in acting under the Direction and Order of any Magistrate, for the Suppression of Riots, or for the carrying into Effect the Laws of Revenue, or in aiding and assisting in any of the Cases aforesaid, are hereby authorised and required to admit every such Person so brought before him or them, as aforesaid, to Bail; any Law, Custom, or Usage, to the contrary thereof in any-wise notwithstanding.

V. And be it further enacted by the Authority aforesaid, That where it shall be made appear to the Judges or Justices of any Court, within the said Province of *Massachusetts Bay*, by any Person, against whom any Inquisition or Indictment shall be found, or Appeal sued or preferred for Murther, or other capital Crime, that the Fact was committed by such Person, either in the Execution of his Duty as a Magistrate, for the Suppression of Riots, or in the Support of the Laws of Revenue, or in acting in his Duty as an Officer of Revenue, or in acting under the Direction and Order of any Magistrate, for the Suppression of Riots, or for the carrying into Effect the Laws of Revenue, or in aiding and assisting in any of the Cases aforesaid, and that he intends to make Application to the Governor, or Lieutenant-governor of the said Province, that such Inquisition, Indictment, or Appeal, may be tried in some other of his Majesty's Colonies, or in *Great Britain*, the said Judges or Justices are hereby authorised and required to adjourn or postpone the Trial of such Inquisition, Indictment, or Appeal, for a reasonable Time, and admit the Person to Bail, in order that he may make Application to the Governor, or Lieutenant-governor, for the Purpose aforesaid.

VI. And be it further enacted, That the Governor, or, in his Absence, the Lieutenant-governor, if he shall direct the Trial to be had in any other of his Majesty's Colonies, shall transmit the Inquisition, Indictment, or Appeal, together with the Recognizances of the Witnesses, and other Recognizances, under the Seal of the Province, to the Governor, or Lieutenant-governor, or Commander in Chief of such

If the Governor directs the Trial to be in any other Colony, he is to transmit the

Where Persons are found to have committed Crimes, and desire to be tried in another Colony, Justices to postpone their Trial, &c.